

Writ Petition No. 45328 of 2025

The State and 08 others.

2. According to brief facts emanating out of present petition, above criminal case was registered under the authorship of petitioner Maryam Bibi with the averments that accused/respondents No.6 to 9 namely (1) Mukhtar Ahmad s/o Hanif (2) Rukhsana Bibi wife of Mukhtar Ahmad (3) Tanveer Ahmad (4) Naveed Ahmad, who happened to be her kith and kins, came to her on 12.02.2023, at 08.00 p.m. and fetched an amount of Rs.6,00,000/- showing extreme need maintaining that their son Tanveer Ahmad/respondent No.8 got visa of Saudi Arabia for Rs.9,00,000/-, as such they need Rs.6,00,000/- for making the payment. Father-in-law of the petitioner was recently retired from Irrigation Department, whose pension amount was lying in the house, hence petitioner made a request to

him and obtained Rs.5,30,000/- from her father-in-law and handed over the same to accused/respondents No.6 to 9 and the said amount was not returned, as such, they committed fraud with the petitioner.

3. Report under Section 173 of Cr.P.C. was submitted in the said case before the concerned quarter. Charge was framed against respondent No.6/ (Mukhtar Ahmad), respondent No.9/(Naveed Ahmad) and respondent No.7/(Mst. Rukhsana Bibi) by the Court of learned Magistrate Section 30, vide memo dated 10.07.2025. Respondent No.8 (Tanvir Ahmad) was proclaimed offender in the case.

4. File reveals that respondent No.9 (Naveed Ahmad) moved an application to District Standing Board claiming that the above said case was absolutely false and frivolous, which culminated into the passing of impugned order dated 23.07.2025 for first change of investigation, by respondent/District Police officer, who interested/ transferred the investigation to Mr. Iftikhar Ahmad, DSP, Organized Crime, Sahiwal.

5. The learned counsel for petitioner mainly placed reliance upon “Qari Muhamamd Rafique Vs. Inspector General of Polcie and other” (2014 SCMR 1499) and went on saying that transfer of the investigation at belated stage after framing of the formal charge was deprecated by August Supreme Court.

6. Reply submitted by respondent/District Police Officer, Sahiwal claims that re-investigation can be ordered even after submission of final report under Section 173 of Cr.P.C. and it can continue till the conclusion of trial, because main goal of the investigation is to dig out the true facts for the advancement of justice. He referred case of “Raja Khursheed Ahmad Vs. Bilal and others” (2014 SCMR 474) and mentioned that placing of an embargo upon

the said power shall amount to put Article 18-A of Police Order, 2002 to redundancy.

7. The learned Assistant Advocate General, Punjab, in her written submissions, maintained that there is no explicit legal prohibition against the further investigation, re-investigation or transfer of an ongoing investigation; a police officer can submit a subsequent report under Section 173 of Cr.P.C. to replace an earlier one either on his own or on the direction of superior officers; further contended that purpose of the further investigation or re-investigation is to gather all the evidence to help the Court in reaching a just conclusion. She referred reliance upon *“Muhammad Akbar Vs. The State and another”* (1972 SCMR 335), *“Bahadur Khan Vs. Muhammad Azam and 2 others”* (2006 SCMR 373), *“Muhammad Ashfaq Vs. Amir Zaman and others”* (2004 SCMR 1924), *“Dilshad Akbar Vs. Inspector General of Police, Lahore and 4 others”* (PLD 2025 Lahore 137), *“Zain Ali and another Vs. Additional Inspector General of Police, Punjab and 7 others”* (2024 P.Cr.L.J 2081), *“Mrs. Saira Fatima Sadozia Vs. D.I.G. Investigation and others”* (2023 P.Cr.L.J 427) and *“Altaf Ahmad Makhdoom Vs. Inspector General of Police Punjab and 9 others”* (2023 P.Cr.L.J. 01).

8. Subject of transfer of investigation is dealt with by Article 18-A of Police Order, 2002, I think it appropriate to have a look of the same, which is being produced below for the facility of reference:-

18A. Transfer of investigation.– (1)
Within seven working days of the filing of an application, the Head of District Police may, after obtaining opinion of the District Standing Board and for reasons to be recorded in writing, transfer investigation of a case from the investigation officer to any other investigation officer or a team of investigation officers of a rank equal to or higher than the rank of the previous investigation officer.

(2) If the Head of District Police has decided an application for transfer of investigation, the Regional Police Officer may, within seven working days of the filing of an application, after obtaining opinion of the Regional Standing Board and for reasons to be recorded in writing, transfer investigation of a case from the investigation officer or a team of investigation officers to any other investigation officer or a team of investigation officers of a rank equal to or higher than the rank of the previous investigation officer or officers.

(3) If a Regional Police Officer has decided an application for transfer of an investigation, the Provincial Police Officer may within thirty days of filing of an application, after obtaining opinion of a Standing Review Board, transfer investigation of a case to an investigation officer or a team of investigation officers of a rank equal to or higher than the rank of the previous investigation officer or officers.

(4) A case under investigation with a District Investigation Branch may only be transferred to another officer or a team of officers of the District Investigation Branch, Regional Investigation Branch or Provincial Investigation Branch.

(5) For the purpose of this Article—

(a) „District Standing Board“ means the District Standing Board constituted by the Head of District Police consisting of a Superintendent of Police as chairperson and two officers not below the rank of Deputy Superintendent of Police as members;

(b) „Regional Standing Board“ means the Regional Standing Board constituted by the Regional Police Officer consisting of a Superintendent of Police as chairperson and two Superintendents of Police as members;

(c) „Standing Review Board“ means the Standing Review Board constituted by the Provincial Police Officer

consisting of a Deputy Inspector General of Police as chairperson and two officers not below the rank of Superintendent of Police as members; and

(d) reference to Head of District Police and Regional Police Officer in the case of Capital City District shall be construed to mean the Head of District Investigation Branch of the Capital City and the Capital City Police Officer, respectively.]”

9. According to the said provision, the power of first change of investigation lies with Head of District Police, who after obtaining opinion of the District Standing Board shall pass the order within seven days, whereas order for the second change of investigation may be made by Regional Police Officer within seven days after seeking opinion of Regional Standing Board. Similarly, power of 3rd change of investigation has been conferred upon Provincial Police Officer, who shall dispose of the application after procuring the opinion of Standing Review Board.

10. There is plethora of the precedent judgments for and against on the subject. In some cases, superior Courts approved the orders for the change of investigation/re-investigation/transfer of investigation, whereas in some cases, such like orders were deprecated and set-aside.

11. After keeping above said supportive and opposing views into *juxta* position to each other, it appears to me that no hard and fast rules can be laid down regarding the criterion justifying the passing of such like orders, because there is no yardstick, as such each and every case has to be seen in the light of its own peculiar circumstances.

12. Crux of the above judgments leads to the conclusion that the order for further investigation / re-investigation / transfer of ongoing investigation should be passed not as a routine matter. It should not be passed

merely on the ground that one party was dissatisfied by the opinion of the Investigating Officer. It cannot be passed to oblige the one party to the detrimental of the other party. It has to be passed sparingly and in exceptional cases, where it appears that;

- i. certain aspects regarding basic constituting elements of the offence, or version of the accused could not be investigated.
- ii. new facts / better evidence or further information has become available, which has direct essential / vital nexus with the alleged crime.
- iii. some proclaimed offender in the case has been arrested and important piece of evidence like recovery of weapon of offence has to be collected and other allied matters has to be investigated.
- iv. defects of vital nature in the already conducted investigation has been marked / detected/ pointed out.
- v. already conducted investigation remained unsatisfactory due to non-availability of required evidence.
- vi. initial investigating officer has extended undue favour to one party by induction of false evidence, or causing some material piece of evidence to disappear or otherwise happens to be biased or partial.
- vii. Investigating Officer happens to be negligent, incompetent or has failed to perform his duty properly.
- viii. investigation needs to be transferred to some other forum or team due to some technical/sensitive issues.
- ix. there is any other compelling circumstance, which makes it necessary that investigation should be transferred to some other officer.

13. So far as passing of order for further investigation/reinvestigation after framing of the formal charge is concerned, scope for the same slims down and stands confined to limited circumstances, because when

investigation has been completed regarding an accused person and report under Section 173 of Cr.P.C. has been submitted regarding him, it indicates that each and every aspect of the case regarding the said accused has already been probed into and material produced by both the sides has already been collected and brought on file and I.O has also rendered opinion, therefore, such like order may be passed in very exceptional circumstances and in rarest of rare case, where some new information emerges, which requires further probe/clarification necessitating the supplementary investigation for the collection of more evidence.

14. It is also pertinent to mention here that Section 24-A of the General Clauses Act, 1897 (inserted by Act IX of 1997) speaks that when a power has been conferred on an authority for passing any order, the authority shall pass the order reasonably, fairly, justly and for the advancement of the purpose of enactment and the authority shall also give reasons for passing the order. Said provision reads as under:-

24A. Exercise of power under enactments.

(1) Where, by or under any enactment, a power to make any order give any direction is conferred on my authority, office or person such power shall be exercised reasonably, fairly, justly and for the advancement of the purpose of the enactment.

(2) The authority, office or person making any order or issuing direction under the powers conferred by or under any enactment shall, so far as necessary or appropriate, give reasons for making the order or, as the case may be, for issuing the direction to the person affected prejudicially”.

15. In the case in hand, petitioner/complainant of F.I.R. No. 301/2024, dated 20.09.2024, came up with the version that she was deprived of an amount of Rs.530,000/-

by accused (respondents No.6 to 9) fraudulently. Case was thoroughly investigated by the Investigation Officer. Report under Section 173 of Cr.P.C. was submitted accordingly and formal charge against the accused persons was framed on 10.07.2025 except respondent No.8 (proclaimed offender). Accused persons (respondents No.6, 7 and 9) raised no objection to the framing of charge and case was fixed for evidence. File speaks that all the aspects of the case regarding the above said respondents were adhered to by initial Investigating Officer providing opportunity of audience to both the sides. No new fact appeared on the surface, which necessitated the collection of further evidence, as such the impugned order dated 23.07.2025 passed by D.P.O. (respondent No.2) was not sustainable in the eye of law in the said circumstances. If any reference is required in this regard that can be had from 'Qari Muhammad Rafique v. Additional Inspector General of Police (Inv.), Punjab and others' (2014 SCMR 1474), wherein the august Supreme Court of Pakistan was pleased to hold that the order for change of investigation at belated stage after framing of formal charge was not sustainable in the eye of law. Rational behind the same appears to me to put a full stop upon the multiplicity of the investigation. D.P.O. also assigned no reason, while passing the impugned order, as such it was also found to be in flagrant violation of requirements of Section 24-A of General Clauses Act, 1897.

16. It is made clear that one of the accused namely Tanvir Ahmad (respondent No.8) was still in hiding and was declared as Proclaimed Offender. Since he has not yet been arrested, therefore, investigation shall continue to his extent and will proceed further when he is arrested or brought before the law.

17. For the reasons recorded above, I hereby allow the present petition and set aside the impugned order. Copy of this order be transmitted to the D.P.O. (respondent No.2) for

intimation and to the learned trial Court, who shall proceed further strictly in accordance with law.

(Tanveer Ahmad Sheikh)
Judge

APPROVED FOR REPORTING.

Judge

Muhammad Ajmal/S.A.N.